

# Never-Filed Clerk Deficiency Notice Setting a Two-Calendar-Day Cure Deadline

United States Court of Appeals for the Fourth Circuit

**In re Cinder Lake Health Network, Inc., Petitioner**

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401-CF-DEFICIENCY-NEVER-FILED

Document code: B02

Hypothetical date: 2026-04-01

## Technical deficiency notice

The clerk identifies three missing items: essential materials, respondent service, and certification that a copy was provided to the trial judge.

The notice ties each defect to an observable omission from the submitted petition. It does not say the privilege argument is weak, the writ standard is unmet, or the requested remedy is too broad. By limiting the notice to essential materials, respondent service, and trial-judge delivery, the clerk preserves judicial consideration of substantive sufficiency after any timely correction.

## **Case-specific cure deadline**

A corrected petition curing every listed defect must be submitted by April 3, 2026, two calendar days after this April 1 notice.

The deadline is case specific: two calendar days from this April 1 notice, ending April 3. This notice sets that cure period because Rule 21 does not prescribe one. A corrected package must supply all three listed items by the stated deadline; partial correction will not establish compliance with the notice.

## **No merits disposition**

The notice neither accepts nor denies the requested writ, evaluates privilege, or predicts substantive sufficiency. Failure to cure would leave this submitted petition unaccepted.

This is not a judgment, summary denial, or dismissal on the merits. It creates an opportunity to cure the three listed omissions and says nothing about whether a corrected petition will prompt an answer, oral argument, or favorable disposition. Any timely corrected submission remains subject to the court's ordinary consideration under Rule 21.

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